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ELEMENTS OF AN OFFENCE

INTRODUCTION

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This section will consider the element of an offence. The black's Law Dictionary defines offence as a violation of the law. The Nigeria Criminal law also defines it as an act or omission which is rendered punishable by some legislative enactment.

The elements of an offence are contained in that particular offence depending on the wording of the offence. Thus, the prosecution must prove all the elements of an offence for which an offence for which an accused person is standing trial. Every offence has two elements, the physical element and the mental element, except strictly liability offence which are complete upon the manifestation of the physical element only.

ACTUS REUS:

POSITIVE ACT

The physical element of an offence may manifest by way of positive act as intent alone no matter how condemnable cannot amount to an offence. For instance, if John moves Mary's bag with the intention of permanently depriving Mary of the use of that bag, John has committed the offence of stealing against Mary and the movement of the bag from its

original position is the physical element or the actus reus of that offence.

Furthermore, the physical element or actus reus of an offence can manifest in words in respect of certain offences such as defamation, sedition, taking unlawful oath and conspiracy. The physical element in this case is committed by words uttered by the accused.

In addition, someone can be guilty of an attempt to commit an offence if, with intent to commit it, he begins to put his intention into execution by means adapted to its fulfillment and manifests the intention by some overt act. There are several offences where it is enough that the accused is in possession of something that contravenes the law, even though he has not begun to put that thing to any unlawful use. For instance, section 148(3) of the Criminal Code provides for unlawful possession of counterfeit coin or of a means of making them. Mere possession of the counterfeit is enough to amount to the physical element of that offence. It does not matter whether you have put the money to use by way of using it to buy something. Possession may not be physical only, it can also be through agency of another person in which case it will be constructive possession.

In some cases, physical act can manifest by way of a passive state of affairs. For instance, where a club or an association on which you have been a member is now banned by government,

you are ordinarily supposed to stop immediately your membership of that association. But where you continue membership after the ban now becomes the physical element of that offence.

OMISSION

Most crimes are committed by positive action and thus the requirement of an "act" will usually be met by a positive act. But in some circumstances a passive failure to act may be deemed to constitute the requisite "act".

Omission is failure or omitting to do what the law requires or command a person to do, a failure of which constitutes an offence. Although the law is generally reluctant to punish people for omissions, hence, majority of the crimes created by law involve overt acts. It is only in certain cases where people are forced to act and failure to do so is treated as an offence. The criminal code has criminalized such omissions to include duties imposed on peace officers (Police Officers) to suppress riot, duties imposed on member of the ship's crew to obey and duty placed on a family head to supply necessities for a child under fourteen years of age etc. The law treats a breach of any of these duties as a crime.

It is important to note that it is not all omissions that give rise to liability, liability depends on whether there is a duty recognized by law, to act or intervene in the circumstances.

The situations in which duties arise are as follows:

(1) DUTY ARISING OUT OF RELATIONSHIP:

The existence of close relationships can give rise to a duty to act, such as that owed by parents to their children or spouses to each other. In Gibbins and Proctor the father of a child and his partner were convicted of murdering the child who had died as a result of their withholding food from it. The father had breached the duty owed by parents to care for their children while Proctor by taking money to buy food, had assumed a duty towards the child. Again, in Downes, a parent being a member of a religious sect called the peculiar people, who believed in prayer rather than medicine, failed to call a doctor for his sick child who later died. Downes was convicted of manslaughter. The reason for the imposition of duty of care in these situations must be the interdependence that springs from close family tie.

(2) WHERE RESPONSIBILITY HAS BEEN ASSUMED

Where a defendant assumes responsibility towards another or voluntarily assumes a duty towards another, then he/she becomes under a legal duty to act. In R v Instan (1893) the defendant lived with her 73 year old aunt. The aunt who had

been healthy until shortly before her death, developed gangrene on her leg. During the last 12 days of her life she could not fend for herself, move about or call for help. Only the dependant knew of her condition and gave her aunt no food and did not also seek medical assistance. The defendant was charged with manslaughter and convicted.

(3) WHERE A DUTY HAS BEEN ASSUMED BY CONTRACT

A duty to aid others may arise out of contract. A lifeguard employed at a swimming pool to ensure the safety of swimmers cannot sit idly by while a swimmer is drowning. In Pittwood (1902) a defendant railway operator, was found guilty of manslaughter when a person was killed crossing a railway line as a result of the defendant leaving the gate open when a train was coming.

(4) DUTY BASED ON CREATION OF PERIL (DANGEROUS SITUATION)

In R V Miller an appellant who squatted in someone's house lit a cigarette and lay down on a mattress in one of the rooms. He fell asleep before he had finished smoking the cigarette and it dropped into the mattress. Later he woke up and saw that the mattress was smoldering. He did nothing about it, he merely moved to another room and went to sleep again. The house

caught fire. The appellant was rescued and subsequently charged with arson and convicted.

THE ACTUS REUS MUST BE VOLUNTARY OR WILLED

Crucially at this point, it must be noted that it is a fundamental pre-condition of criminal liability that the AR of a crime should require human action and be committed voluntarily. This means that where the physical movement of an accused person is involuntary or unconscious, he cannot be said to be acting. For instance, if a person does something in a state of mental blackout or in his sleep, legally speaking he is not acting and there is no criminal liability due to the involuntariness of his conduct. This rule is clearly contained in section 24 of the Criminal Code. Except in a negligent acts or omission, a person is not criminally liable for an act or omission which occurs independently of the exercise of his will or for an event which occurs by accident. It should be noted that the code recognizes the existence of the act but will not criminalise it because it was done involuntarily or independently of the exercise of the will of the accused.

MENS REA

Mens rea is used to refer to the mental element of a crime. In order to appreciate the meaning of mens rea, distinction needs to be made to the different measures of blame.

INTENTION

Intention is simply having a foresight of the consequence and desire for the consequence. It would appear that the desire for consequence is the hallmark of intention. However, in some cases a court has been prepared to hold that the commission of an intentional act with reckless consequences is enough to describe the consequence as intended. In *Hyam v DPP*, dealing with intention in cases of murder, the House of Lords held that there is intention to cause death or grievous bodily harm if the accused deliberately and intentionally did an act knowing that death or grievous bodily harm was a probable consequence of it, even though he did not desire that result. See also *R v Stean*.

PROVE OF INTENTION

Intention is very difficult to prove. This was illustrated in the English case where Bryan C.J. stated that: the devil himself knoweth not the intention of a man; but the state of a man's mind is as much a fact as the state of his digestion.

The implication of this statement is that no one is neither capable of seeing another's mind nor being able to state with absolute certainty what is his intention. Only when a man confesses with respect to what he intended or foresaw can one come close to understanding his intentions though not certain as the confessions can also be misconducted. Having said this,

mental element of the offence. Indeed, it is not relevant to criminal liability except statute specified so. Motive is only relevant in considering sentencing.

RECKLESSNESS:

An accused is said to be reckless when he deliberately disregards a substantial and unjustifiable risk and takes them. In *Obeanu v Ogbeide*, the Supreme Court held that recklessness was an attribute of mental indifference to obvious risk. What it implies is that a man is not reckless if he foresees a criminal liability as only a remote possibility.

NEGLIGENCE:

Negligence is a failure to exercise such care, skill or foresight as a reasonable person would exercise in the circumstances. The test is a clearly objective one. The conduct of the defendant is measured against that of an ordinarily, reasonable careful person. In a nutshell, he ought to have foreseen the possibility of the consequences of his act and avoid it.

The distinction between recklessness and negligence is that the crime of recklessness is worse or more serious than crimes of negligence. In the former, the accused fail to consider the

consequences of his actions or considering them and acting regardless, showing the attitude of indifference which is culpable. A negligent actor on the other hand simply makes an error of judgment.

CONCURRENCE OF THE ACTUS REUS AND MENS REA

The general rule is that before prosecution can secure conviction, mens rea must coincide in point of time with the act or omission that constitutes the actus reus. That is, they must be present simultaneously and must contemporaneously complement each other. Thus, if B forms an intention to kill C and immediately manifest that intention by shooting C with a gun, killing him in the process, he is guilty of murder due to the concurrence of both the physical and the mental elements. Infact, mens rea is an intention to a present act, not a future act.

However, there are several exceptions to this general rule, and they include:

- (1) If the actus reus is a continuing act, it is sufficient for the mens rea to be acquired during its continuance. This is illustrated in *Fegan v metropolitan police*, in this case, the appellant accidentally drove his car onto a police officer's foot whilst parking his car. On being alerted by the police officer to the situation, the appellant abused the constable when the later demanded him to get off his foot, and switched of the

ignition and sat on his car for two to three minutes before moving off. The appellant was convicted of assault and appealed on the grounds that the AR had been committed without mens rea, meaning that there is a lack of coincidence. On appeal it was held that:

"The appellant had been rightly convicted, because his conduct could not be regarded as mere omission or incapacity and there was an act continuing a battery which at its inception was not criminal but which became criminal from the moment when intention was formed to produce the apprehension which was flowing from the continuing act. For an assault to be committed, both the elements of actus reus must be present at the same time. It is not necessary that mens rea should be present at the inception of the actus reus, it can be superimposed on existing act".

(2) If the Actus Reus is a series of transactions, the mens rea would be deemed to coincide with it at any point in time during those transactions. In *Thebo Meli v R*, the appellants struck the deceased with the intent to kill him. Believing him to be dead, they rolled his body over the cliff to make it look like an accident. He was in fact still alive but died from

exposure on the cliff during the night due to exceptionally cold weather conditions. The appellants were convicted of murder and appealed. It was contended in favor of the appellants that the intent to kill did not concur with an act causing death, and that the subsequent act which caused the death was not accompanied by intent to kill but the Privy Council rejected this argument. Accordingly, the Privy Council held that it was impossible to divide up what was really one series of act or a single transaction and the conviction was confirmed. See also R v Church.

STRICT LIABILITY

Offences of strict liability are acts where the need to prove fault, intention or knowledge is dispensed with. The rule is that the offence is complete only with the proof of the physical elements. In R v Efana, it was held that even though both accused believed in all innocence that the second accused was entitled to take certain cases out of customs they were guilty of offences in respect of taking those cases away because the relevant sections of the customs ordinance were absolutely prohibitive.

One of the early strict liability cases is Hobb v Winchester where a butcher, was found to have committed the offence of selling unsound meat even though he could not have

discovered the defect by any reasonable examination and had not been negligent. The court of Appeal held that one who engages in business for profit has to take the risk of criminal liability without fault in the interests of public safety.